

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X Index No.:  
HYSHAWN JACKSON,

Plaintiff,

**SUMMONS**

-against-

THE CITY OF NEW YORK and POLICE OFFICER  
DAVID MARTELLI, SHIELD NO. 2297,

Defendants.

Plaintiff designates New York  
County as the place of trial.  
The basis of the venue is locus  
of occurrence.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
August 10, 2021

**FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.**  
Attorneys for Plaintiff  
250 West 57th Street - Suite 1619  
New York, New York 10107  
(212) 307-5800

By:   
NICOLAS BAGLEY, ESQ.

Defendants' Addresses:

The City of New York  
100 Church Street  
New York, NY 10007

P.O. DAVID MARTELLI, SHIELD NO. 2297  
108<sup>th</sup> Precinct  
547 50<sup>th</sup> Avenue  
Long Island City, NY 11101

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X Index No.:  
HYSHAWN JACKSON,

Plaintiff,

**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK and POLICE OFFICER  
DAVID MARTELLI, SHIELD NO. 2297,

Defendants.

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Plaintiff, HYSHAWN JACKSON, by his attorneys FRIEDMAN, LEVY, GOLDFARB &  
GREEN, P.C. as for his Verified Complaint, alleges the following, upon information and belief:

**PARTIES**

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was  
and still is a municipal corporation duly organized and existing under the laws of the State of New  
York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its  
agents, servants and employees operate, maintained and controlled the Police Department of the  
City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, on June 1, 2020, Defendant POLICE OFFICER  
DAVID MARTELLI, SHIELD NO. 2297, was employed by Defendant THE CITY OF NEW  
YORK, as a police officer.

4. At all times hereinafter mentioned, Defendant POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, was acting within the scope of his employment as a police officer with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297 as said risk attaches to the public consumers of the services provided by The New York City Police Department.

7. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, employed POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297.

8. At all relevant times, the individual defendant was acting pursuant to their authority as a NEW YORK CITY POLICE DEPARTMENT employee. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of their duty and were incidental to their otherwise lawful function as an agent, servant and employee of the New York City Police Department.

9. The Plaintiff, HYSAWN JACKSON ("JACKSON") was, on June 1, 2020, and at all times, a resident of the County and State of New York residing at 2680 Frederick Douglas Blvd, New York, NY 10630.

**CONDITIONS PRECEDENT**

10. On or about August 28, 2020, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiff duly served a Notice of claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

12. On November 9, 2020, the Plaintiff complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law.

**JURISDICTION AND VENUE**

13. The Plaintiff brings this action in the Supreme Court, State of New York, County of New York, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

14. The Plaintiff properly designates New York County as the place of trial. The basis of the venue is the locus of the occurrence.

**STATEMENT OF FACTS**

15. On or about June 1, 2020, at approximately 2:00 a.m., plaintiff was a lawful pedestrian at the intersection of Wooster Street and Broome Street, New York, NY.

16. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, assaulted, confined, unduly restrained, falsely arrested, and falsely imprisoned plaintiff JACKSON.

17. Defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, falsely arrested and falsely imprisoned plaintiff, JACKSON.

18. Plaintiff JACKSON was held at an NYPD facility for approximately fifteen (15) hours.

19. Plaintiff JACKSON was then released on his own recognizance.

20. On September 9, 2020, all charges against plaintiff JACKSON were dismissed and the case was sealed.

21. On June 1, 2020, Plaintiff JACKSON was treated at Woodhull hospital for his injuries which included fractured nose, fractured rib and multiple bruises about his head and body.

**AS AND FOR A FIRST CAUSE OF ACTION**

22. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “21”, inclusive, as though each were set forth at length herein.

23. On June 1, 2020, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted, and battered plaintiff, JACKSON, without any right or grounds thereof.

24. Defendant, POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, injured and maimed the plaintiff JACKSON such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

25. Plaintiff was detained, arrested, imprisoned, assaulted, and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

26. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, imprisonment, assault and battery of plaintiff, JACKSON.

27. Defendants, their agents, servants and/or employees, intended to confine the plaintiff, JACKSON, in that plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

28. At the time of his unlawful arrest, detention and imprisonment, plaintiff, JACKSON, has not committed or attempted to commit any illegal act or crime.

29. At the time of Plaintiff's unlawful arrest, defendants knew that the aforementioned arrest and detention were false and without probable cause.

30. The said false arrest and false imprisonment cause plaintiff, JACKSON, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

31. Defendants placed plaintiff JACKSON under arrest and falsely charged him with disorderly conduct.

32. Plaintiff JACKSON, was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

33. It is alleged that Defendants THE CITY OF NEW YORK, POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, their agents, servants and employees, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated plaintiff, JACKSON, in violation of his constitutional rights.

34. Plaintiff JACKSON was released from custody on June 1, 2020.

35. As a direct result of the above defendants' actions, plaintiff, JACKSON, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

36. Plaintiff, JACKSON, suffered – and continues to suffer – greatly, was and is physically and emotionally traumatized by this excessive use of force, detention and imprisonment.

37. The false criminal arrest and wrongful imprisonment of plaintiff, JACKSON, because of defendant's knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

38. As a direct and proximate result of defendant's actions, plaintiff, JACKSON, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

39. As a result of the foregoing, plaintiff, JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK AND POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION**

40. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "39," inclusive, as though each were set forth fully at length herein.

41. On June 1, 2020, at approximately 2:00 a.m., plaintiff was a lawful pedestrian at the intersection of Wooster Street and Broome Street, in the City and State of New York when he was assaulted and battered by POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, employed by defendant, THE CITY OF NEW YORK.

42. On June 1, 2020, defendants commenced a criminal proceeding against plaintiff knowing that plaintiff had not committed any of the alleged criminal acts.

43. On September 9, 2020, the criminal action was terminated in favor of the plaintiff.

44. Defendants lacked probable cause to for the arrest and criminal proceeding, to wit, the defendants did not witness any criminal acts, the defendants did not observe, nor did they have any credible evidence that plaintiff was guilty of Disorderly Conduct.

45. Despite this lack of probable cause, known to defendants immediately and prior to the arrest of plaintiff, defendants still falsely arrested plaintiff and maliciously prosecuted him for crimes he did not commit.

46. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute plaintiff after observing that he did not commit a crime.

47. Furthermore, defendants continued the malicious prosecution that there was no probable cause for the arrest.

48. As a result of the above mentioned, the plaintiff, JACKSON, was injured, became sick, sore, lame, and disabled, and belief, will continue to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer from said injuries.

49. As a result of the foregoing, plaintiff, JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK AND POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION**

50. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “49,” inclusive, as though each were set forth fully at length herein.



51. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff, JACKSON's civil rights.

52. Defendants deprived plaintiff, JACKSON, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

53. Defendants violated the civil and constitutional rights of plaintiff, JACKSON, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

54. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

55. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department have, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

56. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above-described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of plaintiff, JACKSON, and others similarly situated.

57. As a result of the foregoing, plaintiff, JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK AND POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION**

58. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “57,” inclusive, as though each were set forth fully at length herein.

59. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, with the knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

60. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, with knowledge that said police officer lacked the deportment to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

61. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, with knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and therefore, was unfit to be a police officer.

62. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including Defendants POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, with knowledge that said police officer had vicious propensities and was therefore unfit to be a police officer.

63. As a result of the foregoing, plaintiff JACKSON, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

64. As a result of the foregoing, plaintiff JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD

NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION**

65. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “64,” inclusive, as though each were set forth fully at length herein.

66. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff JACKSON; the assault and battery committed by defendants against plaintiff JACKSON; the violation of plaintiff’s civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff JACKSON.

67. As a result of the foregoing, plaintiff JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION**

68. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “67,” inclusive, as though each were set forth fully at length herein.

69. Defendants’ conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

70. Defendants acted with the desire to cause plaintiff JACKSON, mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

71. Defendants acted with utter and reckless disregard of the consequences of their actions.

72. As a result of the foregoing, plaintiff JACKSON, has sustained severe and debilitating physical, emotional, and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

73. As a result of the foregoing, plaintiff JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR AN SEVENTH CAUSE OF ACTION**

74. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “73,” inclusive, as though each were set forth fully herein.

75. Upon information and belief, defendant, THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to intercede on behalf of plaintiff JACKSON to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

76. As a direct and proximate result, Plaintiff suffered injuries and damages described above.

77. As a result of the foregoing, plaintiff JACKSON, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**THE ITEMS OF DAMAGE OR INJURIES CLAIMED**

78. That by reason of the foregoing, plaintiff, JACKSON, was severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress, and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

79. Plaintiff JACKSON suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him; he assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

80. Plaintiff was deprived of his freedom.

81. As a result of the aforementioned acts, Defendants violated the rights of plaintiff JACKSON, secured to him under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

82. Plaintiff JACKSON was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

83. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

84. As a result of the aforesaid, Plaintiff JACKSON, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, HYSHAWN JACKSON, respectfully demands judgment against defendants, THE CITY OF NEW YORK and POLICE OFFICER DAVID MARTELLI, SHIELD NO. 2297, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York  
August 10, 2021

**FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.**

Attorneys for Plaintiff

250 West 57th Street - Suite 1619

New York, New York 10107

(212) 307-5800

By: 

NICOLAS BAGLEY, ESQ.

INDIVIDUAL VERIFICATION

STATE OF NEW YORK        )  
                                  ) ss.:  
COUNTY OF NEW YORK    )

HYSHAWN JACKSON, being duly sworn deposes and says:

The deponent is the plaintiff in the annexed Complaint and has read the foregoing Complaint and knows the contents thereof, that the same is true to his knowledge, except as to those matters stated to be alleged upon information and belief, and to those matters he believes them to be true.

  
HYSHAWN JACKSON

Sworn to before me this  
10 day of August, 2021

  
Notary Public

NICOLAS BAGLEY  
Notary Public, State of New York  
N.Y. U2BA6219928  
Qualified in Westchester County  
Commission Expires April 5, 2022